

easement causes of action for the reasons stated. Plaintiffs have not persuaded the Court that they are entitled to judgment as a matter of law based on the applicable law and evidence in the record, the conflicts in the evidence, and reasonable conflicting inferences that can be drawn from the evidence. The motion for summary judgment and for summary adjudication of the first and third causes of action is therefore **denied**.

Plaintiffs' Evidentiary Objections to Defendant's Declarations

A. Wooten Declaration

Obj. No. 1 (¶ 5): **Overruled**. Objections go to weight not admissibility.

B. Sipos Declaration

Obj. Nos. 1 and 3: **Sustained**.

C. Signorotti Declaration

Obj. Nos. 4-8: **Sustained in part**, to the extent the statements objected to in paragraphs 4(b) through (f) are offered for the hearsay purpose of the truth of the declarant's characterization of the records, but not to the extent the text is reasonably interpreted as merely providing a brief identification of the document attached as the specified exhibit. The Court notes Plaintiffs do not object to any of the exhibits to the Signorotti Declaration, including Exhibits 3 through 7 which are described in the text of Signorotti Decl. ¶¶ 4(b)-(f).

Defendant's Evidentiary Objections

Defendant objected only to portions of the Plaintiffs' request for judicial notice. The Court has addressed those objections above.

8. 9:00 AM CASE NUMBER: C24-00237

CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC

*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

On February 20, 2026, the Court granted Preliminary approval of the settlement memorialized in the class action Settlement Agreement entered by plaintiff Connor Jeremy Beare ("Plaintiff") and defendants, the Law Offices of Mitchell D. Bluhm and Associates, and Robert Bradley Ridgway ("Defendants"). The Parties now request final approval of settlement, which is **granted** as set forth herein. No appearance is required at the hearing on June 17, 2026.

Background

This is a class action lawsuit where the Plaintiff alleges that Defendants committed violations under various debt collection statutes and laws. Under the settlement terms, Defendants will pay a \$6,500 class fund to be distributed *pro rata* to Class Members. Each of the Thirteen Class Members besides Plaintiff will receive no less than \$500. Settlement checks that remain uncashed after 90 days from

the date they are mailed will be redistributed to Bay Area Legal Aid – Contra Costa County in Richmond, California, as a *Cy pres* doctrine recipient.

Defendants will pay Plaintiff \$2,000 in statutory damages and a service award not to exceed \$2,000, as authorized by the Court. Defendants have also agreed to pay reasonable attorneys' fees and costs to Class Counsel in an amount not to exceed \$45,000, and will not oppose this fee request.

As injunctive relief, Defendants agree not to engage in the business of debt collection in California without first obtaining a debt collection license from the California Department of Financial Protection and Innovation. They further agree not to send written collection communications to California consumers that fail to display a California debt collector license number.

Once the Settlement receives final approval and all conditions are met, Defendants will be released from the individual and class claims alleged in the lawsuit. The Parties contend the settlement satisfies all requirements for class certification under California Rule of Court 3.769 and is fair, adequate, and reasonable.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks \$45,000 in attorney's fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

The requested representative payment of \$2,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined "risk" by doing so. Considering all the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**, except for attorney's fees, which is scheduled for hearing on November 25, 2026 at 9:00 a.m. No appearance is required at the June 17, 2026 hearing.
2. Plaintiff's Counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel is to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

9. 9:00 AM CASE NUMBER: C24-03411
CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS
FILED BY: ELIAHU, AVI
TENTATIVE RULING:

Plaintiff Julie Romanowski brings this personal injury action seeking damages for injuries suffered when Defendant Aaron Eliahu collided with her while skiing at Northstar California Ski Resort. Defendants Aaron Eliahu, Avi Eliahu and Patricia Eliahu now move for summary judgment, arguing that Plaintiff's case is barred by the primary assumption of risk doctrine. For the reasons stated below, the motion is **granted**.

Facts

This action arises from a collision between skiers that occurred on December 24, 2022, on the Drifter